

Smt. Amrawati Devi v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 13 March 2023 · Writ-C No. 4171 of 2023 · **Petition disposed after mistaken demand notice was withdrawn.**

HEADNOTE

Writ seeking quashing of a demand notice issued after permanent disconnection was disposed of when the electricity department admitted the notice had been issued by mistake and withdrawn. The Court held that nothing survived and did not construe the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Smt. Amrawati Devi sought quashing of a demand notice dated 29 August 2022 issued by the electricity department after her supply had been permanently disconnected. The department twice took time, including to show compliance with the Electricity Supply Code, 2005, and then stated that checking had found her using electricity, which it treated as theft. On 13 March 2023 its counsel admitted on instructions that the notice had been issued by mistake and withdrawn, and placed before the Court the Executive Engineer's communication dated 10 March 2023.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

infructuous disposal after withdrawal of demand

HOLDING

Where the electricity department admits that a demand notice issued after permanent disconnection was issued by mistake and has been withdrawn, nothing survives for decision and the writ petition is disposed of.

¶ 4

PRINCIPLE TAGS

procedural-listing-no-construction After counsel admitted on instructions that the impugned demand had been withdrawn as issued by mistake, the Court disposed of the writ because nothing survived and did not construe any clause of the Electricity Supply Code, 2005. ¶ 4